

ARCHIVED CONTENT

Information released online from January 20, 2009 to January 20, 2017.

NOTE: Content in this archive site is **NOT UPDATED**, and links may not function. External links to other Internet sites should not be construed as an endorsement of the views contained therein.

[Go to the current State.gov website for up-to-date information. \(http://www.state.gov/\)](http://www.state.gov/)

U.S. Department of State Diplomacy in Action

Cameroon

Country Reports on Human Rights Practices

Bureau of Democracy, Human Rights and Labor

1999

February 23, 2000

Cameroon is a republic dominated by a strong presidency. Since independence, a single party, now called the Cameroon People's Democratic Movement (CPDM), has remained in power and limited political choice. In October 1997, CPDM leader Paul Biya won reelection as President in an election boycotted by the three main opposition parties, marred by a wide range of procedural flaws, and generally considered by observers not to be free and fair. Although the Government legalized opposition parties in 1990 after widespread protests, most subsequent elections, including the May 1997 legislative elections, which were dominated by the CPDM, were flawed by numerous irregularities. International and local observers generally consider the election process, which is controlled by the Government's Ministry of Territorial Administration, as not free and fair. No President has ever left office in consequence of an election. The President retains the power to control legislation or to rule by decree. In the National Assembly, government bills take precedence over other bills, and no bills other than government bills have been enacted since 1991, although legislation proposed by the Government sometimes has not been enacted by the Assembly. The President repeatedly has used his control of the legislature to change the Constitution. The 1996 Constitution lengthened the President's term of office to 7 years, while continuing to allow Biya to run for a fourth consecutive term in 1997 and making him eligible to run for one more 7-year term in 2004. The Government has taken no formal action to implement other 1996 constitutional changes that provide for new legislative institutions, including a partially elected senate and elected regional councils, and a more independent judiciary, even though the President had announced in 1997 that most of these reforms would be implemented in 1998. Although the country's first local government elections were held in 1996, President Biya limited their scope by expanding the number of municipal governments headed by presidentially appointed "delegates" rather than permitting the election of mayors, especially in pro-opposition regions. The Government remained highly centralized. The judiciary is subject to political influence and suffers from corruption and inefficiency.

Internal security responsibilities are shared by the national police (DGSN), the National Intelligence Service (DGRE), the gendarmerie, the Ministry of Territorial Administration, military intelligence, the army, and to a lesser extent, the Presidential Guard. The police and the gendarmerie have dominant roles in enforcing internal security laws. The security forces, including the military forces, remain under the effective control of the President, the civilian Minister of Defense, and the civilian head of police. The security forces continued to commit numerous serious human rights abuses.

The country's population of about 15 million had a recorded mean per capita Gross National Product (GNP) of about \$590. Following nearly a decade of economic decline, economic growth resumed in 1994 and subsequently has continued, due chiefly to large public sector salary cuts, a 50 percent currency devaluation, stabilization of terms of trade, and increased external preferential financing and debt relief. In recent years, recorded mean per capita GNP growth has averaged about 2

percent a year in real terms. However, economic recovery continues to be inhibited by a large inefficient parastatal sector, excessive public sector employment, growing defense and internal security expenditures, and by the Government's inability to collect internal revenues effectively, especially in economically important pro-opposition regions. Widespread corruption in government and business also impedes growth. The civil service and the management of state-owned businesses have been dominated by members of the Beti and Bulu ethnic groups. The majority of the population is rural, and agriculture accounts for 25 percent of GNP. Principal exports include timber, coffee, cocoa, cotton, bananas, and rubber. The Government also continued to receive substantial assistance from international financial institutions.

The Government's human rights record continued to be generally poor, and government officials continued to commit numerous serious abuses. Citizens' ability to change their government remained limited. Security forces committed numerous extrajudicial killings; reportedly were responsible for disappearances, some of which may have been politically motivated; and tortured and often beat and otherwise abused detainees and prisoners, generally with impunity. However, the Government prosecuted some of the most egregious offenders; policemen were convicted and sentenced to prison terms for several extrajudicial killings, although the sentence in at least one case was reduced greatly on appeal. Conditions remained harsh and life threatening in almost all prisons, although the Government granted international humanitarian organizations increased access to prisoners. Security forces continued to arrest and detain arbitrarily various opposition politicians, local human rights monitors, and other citizens, often holding them for prolonged periods, often without charges or chance for trial and, at times, incommunicado. Security forces conducted illegal searches and harassed citizens. The judiciary remained corrupt, inefficient, and subject to political influence. A military tribunal exercised criminal jurisdiction over civilians and denied them fair trials. The Government infringed on privacy and monitored and harassed some opposition activists. The Government continued to impose some limits on press freedom. Although private newspapers enjoyed considerable latitude to publish their views, journalists continued to be subject to serious official harassment. Unlike previous years, there were no reports that the Government seized newspaper editions; however, the Government continued its prosecutions of pro-opposition journalists under criminal libel laws. The Government continued to obtain convictions against several journalists under these laws. A 1996 law revoked formal press censorship and moved supervision of the press from the administrative authorities to the courts, but the Government has not yet implemented a 1990 law designed to end its virtual monopoly of domestic broadcast media. The Government sometimes restricted freedom of assembly and association. At times the Government used its security forces to inhibit political parties from holding public meetings. Government security forces limited freedom of movement and at times impeded the activities of nongovernmental organizations (NGO's). Violence and discrimination against women remained serious problems. Female genital mutilation (FGM) persisted in some areas. Discrimination against indigenous Pygmies continued. Societal discrimination based on religion persisted in some areas. Discrimination against ethnic minorities remained widespread. The Government continued to infringe on workers' rights, and restricted the activities of independent labor organizations. Child labor remained a problem. Slavery reportedly persisted in parts of northern Cameroon. Forced labor and child labor, including forced child labor, were problems. There were reports of trafficking in persons. Mob violence continued to result in some deaths.

RESPECT FOR HUMAN RIGHTS

Section 1. Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no confirmed reports of political killings; however, the security forces continued to use excessive, lethal force against private citizens and committed numerous extrajudicial killings.

On the night of January 18-19, in the Yaounde neighborhood of Cite Verte, a gendarmerie captain named Angoula shot and killed Yves Atiback following a dispute. Captain Angoula was arrested and charged with murder. At year's end, he was detained in the Yaounde Central Prison, where he was awaiting trial.

On February 4, villagers in Bali in the Northwest Province seized three young Fulani shepherds, Issa Adamaou, Salihou Sinbo, and Idrissou Kari, and killed them by burning them alive without trial. The villagers allegedly acted on the orders of the Fon of Bali, the local traditional ruler, who reportedly accused the shepherds of having stolen two of the Fon's cows. Police arrested seven individuals in connection with these killings, but by year's end their trial had not begun. The Fon of Bali was not arrested or detained.

In March, Denis Nzidchem, a detainee in Douala's New Bell Prison, died of injuries inflicted by Douala police and prison guards after they apprehended Nzidchem following his escape the previous day.

In a September bar fight over a woman, three members of the Presidential Guard beat to death Theophole Mbasi Ombe. Ombe died on September 24 in Obala Hospital.

There was a media report that in October, Frederic Djomeli died of internal bleeding in the hospital in Bafang in Haut-Nkam Division of the West Province, shortly after he was released from police custody and found bleeding and unconscious on a street. According to the media report, his family filed suit against Police Superintendent Simon Menzoui, alleging that police officers tortured Djomeli on Menzoui's orders after arresting him on suspicion of having stolen windshields from parked motor vehicles.

Credible reports by the press and the Maroua-based Movement for the Defense of Human Rights and Liberties (MDHRL), one of the few operating human rights organizations in the Far North province, describe a large but undetermined number of extrajudicial killings perpetrated by a special antigang gendarmerie unit tasked with combating highwaymen. This unit was created under the direct authority of the Minister of Defense and operates outside the normal chain of command for law-and-order units. While some armed suspects were killed in firefights with law-and-order forces, there were credible reports that others caught in dragnet operations were executed summarily. Families of the deceased and human rights NGO's have accused the head of this unit, Colonel Pom, of extrajudicial killings of innocent locals. The MDHRL estimated that between 300 and 800 persons have been killed since the beginning of 1998. The Government's National Commission on Human Rights and Freedoms (NCHRF) confirmed this estimate of the number of killings, although it has been unable to determine the exact number of persons killed, since many the victims' families are too frightened to speak with human rights groups. At least one private newspaper, the Douala-based biweekly Mutations, also reported in 1998 that security forces summarily executed hundreds of alleged highway robbers in northern Cameroon during recent years.

Numerous prisoners died in custody due to abuse inflicted by members of the security forces or harsh prison conditions and inadequate medical treatment (see Section 1.c.). Samuel Muko, one of several Anglophones arrested in the Northwest Province in September 1998 on suspicion of manufacturing guns and subsequently detained in Bafoussam Central Prison in the West Province, died in the Gendarmerie Hospital in Bafoussam in October reportedly as a result of mistreatment allegedly including torture and starvation in prison. Muko allegedly weighed only 100 pounds when he died. According to reliable reports, at least eight detainees held after March 1997 attacks on government installations in Northwest Province died from abuse or illness and inadequate care since their imprisonment (see Section 1.c.). According to a human rights group in Bamenda, Patrick Jimbou died in Yaounde's Jamot Hospital on June 28 after a lengthy illness due to poor treatment in prison, and Laurence Fai died on August 31, 1998.

In May U.N. Commission on Human Rights Special Rapporteur Nigel Rodley investigated torture and extrajudicial killings in the Far North Province (see Sections 1.c. and 4), but the conclusions of his trip and final report were not made public during the year.

On June 10, at the conclusion of a judicial process that began in January, the Douala Higher Instance Court upheld the conviction of policeman Noe Nguene and sentenced him to 20 years in prison for having shot and killed Alain Tuno Fossi, a 28-year-old Douala-based businessman, at a roadblock in July 1998. Fossi's funeral procession had been joined by a group of Douala residents protesting police brutality.

On September 29, 1998, Thomas Ngoh, an Anglophone barkeeper, died while in detention by gendarmes in the town of Wum in the Northwest Province. According to a post mortem report by a doctor of Wum Main Hospital, Ngoh died of a fracture of the sternum, and his corpse also had several other broken bones, was missing toenails that had been pulled out, and had large injuries on the back and buttocks as well as candle wax drippings on parts of the body. Ngoh had been detained on September 27 by gendarmes, one of whom, Martin Nzeffe, had left his service pistol overnight at Ngoh's bar, from which it allegedly was stolen. In October manslaughter charges were filed against Nzeffe and another gendarme, Singa Docta, who were detained in Baffoussan Prison awaiting trial as of year's end.

On December 28, 1998, Police Inspector Gaston Ndjere shot and killed 20-year-old Guy Herv Diesse at the gate of Diesse's family house in Bafoussam. The shooting followed a fight between Diesse and four other men, including Ndjere and policeman Yves Marie Ngongang. Ndjere and Ngongang were arrested. The Bafoussam Higher Instance Court convicted Ndjere of murder and on August 2 sentenced him to life imprisonment and ordered the Government to pay damages equivalent to about \$36,000 to Diesse's family. Ngongang, too, was tried but was acquitted and released.

On February 9, the Yaounde Court of Appeals ruled on the cases of former Police Commissioner Joseph Nsom Bekoungou and Police Inspector Jacques Bama, both of whom a lower court had convicted in 1998 in connection with the November 1997 death of a robbery suspect in their custody, Emile Maah Njock, after interrogating officers beat him and applied an electric iron to his genitals and other parts of his body during a 3-day effort to extract a confession. From "complicity in torture," the charges against Bekoungou were lowered to "omission to provide assistance." This resulted in his 6-year jail term being reduced to a 1-year jail term and a fine. The same appeals court reduced Bama's prison term from 10 to 8 years, declared the DGSN responsible for the death, and ordered the Government to pay damages to Njock's family.

There were no known developments in three apparently unclosed 1998 cases: The reported January 1998 police killing of Serge Francois Massoma; the June 1998 police killing of a 17-year-old male during racial violence against whites in Yaounde; the June 1998 police shooting of truck driver Jean-Marie Penga at a roadblock in Douala.

There continued to be no developments in the 1997 security force killing of Faustin Fetsogo and of five persons killed in 1997 during opposition politician Koulagne Nana's election campaign following a skirmish with the forces of a traditional ruler loyal to the ruling party.

Ethnic conflicts in rural areas continued to generate occasional mass violence in at least one instance (see Sections 1.c. and 5), but there were no reports of deaths due to such violence during the year.

Mob violence and summary justice directed against suspected thieves and those suspected of practicing witchcraft and other crimes reportedly continued to result in a number of deaths and serious injuries. Although the number of reported cases of mob killings appeared to diminish in major cities during the year, such incidents reportedly have continued in rural areas in recent years. In one case during the year, a mob lynched an alleged chicken thief. The burning to death of three Fulani shepherds in Bali in connection with an alleged cattle theft also appeared to involve elements of mob violence.

b. Disappearance

There were reports of disappearances of persons in the custody of security forces; there had been no such reports in previous recent years. Some of these reported disappearances may have been politically motivated.

A spokesman for a Chadian political party stated in a radio interview that in July, Chadian political refugees Jim Temba and El Hadj Bakeye, who had been living in the northern part of the country, were summoned by Cameroonian security forces and were never seen again. Local human rights monitors judged this report credible.

A number of Chadian herders were reported as disappeared and presumed killed.

The family of truck driver Mahamat Oumar was unable to find him between September 25, when elements of the special gendarmerie antigang unit based in the Far North Province arrested him, and year's end.

The Government had not initiated any public investigation of any of these disappearances by year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Penal Code proscribes torture, renders inadmissible in court evidence obtained thereby, and prohibits public servants from using undue force against any person; however, although President Biya also promulgated a new law in 1997 that bans torture by government officials, there were credible reports that security forces continued to torture, beat and otherwise abuse prisoners and detainees. In New Bell and other nonmaximum-security penal detention centers, beatings are common and prisoners reportedly are chained or flogged at times in their cells. However, the authorities often administer beatings not in prison facilities but in temporary detention areas in a police or gendarme facility. Two forms of physical abuse commonly reported to be inflicted on detainees include the "bastinade," in which the victim is beaten on the soles of the feet, and the "balancoire," in which the victim, with his hands tied behind his back, is hung from a rod and beaten, often on the genitals. Nonviolent political activists often have been subjected to such punitive physical abuse during brief detentions following roundups of participants in antigovernment demonstrations or opposition party political rallies.

Security forces subject prisoners and detainees to degrading treatment that includes stripping, confinement in severely overcrowded cells, and denial of access to toilets or other sanitation facilities. Police and gendarmes often beat detainees to extract confessions and the names and whereabouts of alleged criminals. Pretrial detainees sometimes are required, under threat of abuse, to pay so-called "cell fees" (essentially a bribe to the prison guards to prevent further abuse).

Government officials at the Nkondengui and Mfou production prisons near Yaounde continued to inflict severe physical abuse on the incarcerated survivors of the Anglophones who were arrested in a security force dragnet following armed attacks in March 1997 on government facilities in the Northwest Province (see Section 1.e.). Two individuals acquitted of the same charges by a military tribunal in 1997 and released in 1998, alleged that they had been tortured repeatedly, often by flogging, at the garrison of the Lakeside gendarmerie company in Yaounde. The Anglophone detainees have argued consistently that their original confessions were extracted through torture. Such torture ranged from severe beating to being forced to walk on sharp objects while barefoot. One of these detainees had to have all of his toes removed due to the extent of his injuries from bastinade torture. Although the military court that tried these detainees allowed them to state these charges, it did not rule the testimony extracted through torture as inadmissible.

On January 17, in the Yaounde neighborhood of Melen, a group of armed men, one of whom had identified himself as working for a "colonel," shot at Hilaire Tshudjo Kamga, secretary general of Conscience Africaine, a human rights NGO, and ran his car off the road in a car chase, inflicting injuries that required hospitalization. The attack came shortly after Kamga received several telephone calls threatening his life in connection with his human rights work (see Section 4).

On May 11 in Buea, the capital of the Anglophone South West Province, four gendarmes in plain clothes dragged Martin Zacharia Njeuma, a university professor of history, out of his vehicle, and beat him severely. Although authorities subsequently indicated that this was a case of mistaken identity, police authorities took no disciplinary action. Mr. Njeuma reportedly attempted to pursue a court case against the gendarmes.

In October in Bafoussam in the West Province, gendarmes using batons publicly beat four employees of the Bafoussam urban council 50 times each on the soles of their feet. The public beating reportedly was ordered without any judicial process by provincial governor Admadou Tidjani, also known as "Pinochet" among inhabitants of the West Province. The four urban council employees reportedly had fought with a taxi driver in the course of manning a road checkpoint that the locally elected but revenue-poor opposition-dominated urban council continued to maintain in order to enforce revenue-generating local traffic ordinances after the governor, a central government appointee, had ordered it dismantled (see Section 3).

It was learned during the year that on September 29, 1998, an Anglophone barkeeper died while in detention, reportedly as a result of torture by gendarmes in the town of Wum in the Northwest Province; two gendarmes reportedly were facing manslaughter charges in connection with this killing (see Section 1.a.).

In October an Anglophone man detained in Bafoussam since September 1998 on suspicion of manufacturing guns died of mistreatment reportedly including starvation and torture, and allegedly weighing only 100 pounds at his death (see Section 1.a.).

There was a media report that in October in Bafang in the West Province, a man detained by police on suspicion of having stolen windshields from parked motor vehicles died from massive internal bleeding shortly after being released from police custody (see Section 1.a.). However, initial investigation could not confirm this report.

Seke Columban, the police commissioner in Guider, in North Province, beat Madi Baddai both while arresting him in a nightclub on September 14, and during a subsequent 4-day detention, causing serious injuries. The Commissioner reportedly became enraged with Madi Baddai after Madi Baddai inadvertently touched the commissioner at the night club; refusing to accept Madi Baddai's apologies, the commissioner reportedly dragged him to the police station while continuing to beat him. Although Madi Baddai filed charges against the commissioner, no action against him had been taken by year's end (see Section 1.d.).

In November police in Yaounde beat on the soles of their feet several persons whom they were detaining without charge at a district police station (see Section 1.d.).

Security forces harassed and threatened journalists (see Section 2.a.).

Security forces frequently used roadblocks to exact bribes or thwart opposition political activities (see Section 2.d.).

On February 22, the Douala Military Tribunal convicted of breach of orders causing bodily harm and destruction an undisclosed number of personnel of the 21st Navy Battalion who in January 1998 broke into a church in Douala, beat and stabbed the priest and several youths, raped young women, and stole funds. The tribunal sentenced them to 1 years' imprisonment with no possibility of remission. At year's end, the Buea military tribunal was preparing to try the commander of the 11th Navy Battalion and two noncommissioned officers in connection with looting and alleged beatings and rapes of civilians by naval cadets in the Anglophone Southwest Province port of Limbe in November 1998. There were no developments in other 1998 cases of nonlethal violence by security forces.

On June 22, there was an incident of tribal violence in the Northwest Province, where there was a land dispute involving the Awings and the Balighams. Several people were injured in the conflict, before the dispute was finally settled by the Northwest Fons Conference (NOWEFCO)(see Section 5).

Prison conditions remained harsh. Prisons are seriously overcrowded, unsanitary, inadequate, especially outside major urban areas. Serious deficiencies in food, health care, and sanitation due to a lack of funds are common in almost all prisons, including in "private prisons" in the north operated by traditional rulers. Prisoners are kept in dilapidated colonial-era prisons, where the number of detainees is four to five times the original capacity. Health and medical care are almost nonexistent, and prisoners' families are expected to provide food for their relatives in prison. Prison officials torture, beat, and otherwise abuse prisoners (see Section 1.c.). Prisoners routinely die due to harsh prison conditions and inadequate medical treatment. In Douala's New Bell Prison, there were only seven water taps for a reported 2,300 prisoners; this contributed to poor hygiene, illness, and deaths. In New Bell and other nonmaximum-security penal detention centers, families are permitted to provide food and medicine to inmates. However, beatings are common. Prisoners reportedly are chained or flogged at times in their cells and often are denied adequate medical care.

Credible press reports indicate that Douala's New Bell prison, originally built for 600 inmates, held more than 2,300 during the year. A 1997 report on prison conditions indicated that Bertoua Prison, which was built to hold 50 detainees, housed over 700 persons. The Kondengui Central Prison in Yaounde, constructed in 1967 to hold 1,500 inmates, reportedly held more than twice that number during the year. The government official in charge of prisons, Antar Gassagay, reportedly said in June that the Central Prison of Bafoussam, built for 320 inmates, held 3,140 persons. Overcrowding is exacerbated by the large number of long pretrial detentions and the practice of "Friday arrests" (see Section 1.d.). According to credible press reports, more than 1,400 of the inmates of the Douala prison were pretrial detainees, whereas only 900 were convicted prisoners.

Juveniles and nonviolent prisoners often are incarcerated with violent adults, although not usually in the same cells. There are credible reports of sexual abuse of juvenile prisoners by adult inmates. Corruption among prison personnel is widespread. Persons awaiting trial often are held in cells with hardened criminals. There are few detention centers for women; women routinely are held in prison complexes with men, occasionally in the same cells. Some high-profile prisoners are able to avoid some of the abuse that security forces routinely inflict on many common criminals. They are held in elite wings of certain prisons, where they enjoy relatively lenient treatment.

Numerous NGO's, diplomatic missions, and the NCHRF all have criticized publicly the conditions of the group of Anglophone detainees arrested in 1997. One reliable report described 28 detainees sharing a cell measuring 14 square meters (about 140 square feet). At least eight of the original detainees reportedly have died from abuse or lack of medical care: Emmanuel Konseh, Samuel Tita, Mathias Gwei, Neba Ambe, Mado Nde, Richard Fomusoh Ngwa, Patrick Jimbou, and Lawrence Fai.

In the north, the Government permits traditional Lamibe (chiefs) to detain persons outside the government penitentiary system, in effect in "private prisons." The places of detention in the palaces of the traditional chiefs of Rey Bouba, Gashiga, Bibemi, and Tcheboa have the reputation of seriously mistreating their inmates. Members of the National Union for Democracy and Progress (UNDP) party, which was in opposition until late 1997, have alleged that other UNDP members have been detained in these private jails and that some have died from mistreatment.

Both the Cameroonian Red Cross and the NCHRF visited prisons only infrequently during the year. However, the International Committee of the Red Cross (ICRC) began to visit prisons on March 1, pursuant to a December 1998 agreement with the Government under which the ICRC was to have free access to all detention centers and prisons, have private discussions with the inmates, and make repeated or unscheduled visits (see Section 4). Although the ICRC does not release its findings publicly, the Government generally complied with its agreement with the ICRC, which had not conducted prison visits in the country during the previous 7 years due to dissatisfaction with the limited access allowed by the Government. However, despite government assurances that he would have free access to such sites, officials denied U.N. Special Rapporteur for Human Rights Nigel Rodley access in May to holding cells operated by the Government's special antigang unit (see Sections 1.a. and 1.b.).

d. Arbitrary Arrest, Detention, or Exile

The Penal Code requires that an arrest warrant be required for any arrest, except when the criminal is caught in the act; however, security forces continued to arrest and detain citizens arbitrarily. The Penal Code also stipulates that detainees be brought promptly before a magistrate; however, arbitrary, prolonged detention remained a serious problem, as security forces often failed to bring detainees promptly before a magistrate and sometimes held them incommunicado for months or even years.

Police legally may detain a person in custody in connection with a common crime for up to 24 hours, renewable three times, before bringing charges. However, the law provides for the right to a judicial review of the legality of detention only in the two Anglophone provinces. Elsewhere, the French legal tradition applies, precluding judicial authorities from acting on a case until the administrative authority that ordered the detention turns the case over to the prosecutor. After a magistrate has issued a warrant to bring the case to trial, he may hold the detainee in administrative or "pretrial detention" indefinitely, pending court action. Such detention often is prolonged, due to the understaffed and mismanaged court system. Furthermore, a 1990 law permits detention without charge by administrative authorities for renewable periods of 15 days, ostensibly in order to

combat banditry and maintain public order. Persons taken into detention frequently are denied access to both legal counsel and family members. The law permits release on bail only in the Anglophone provinces, where the legal system includes features of British common law. Even there bail is granted infrequently.

Government officials and security forces continued to use arbitrary arrest to harass and intimidate members of opposition parties and other critics of the Government. On April 14, gendarmes in the Mbam and Inoubou Division of the Center Province arrested Gilbert Ndengue Ndengue, the divisional leader of the Social Democratic Front (SDF), the country's leading opposition party, when Ndengue refused to comply with an order from the deputy mayor of Deuk, a member of the ruling CPDM party, to remove portraits of SDF National Chairman John Fru Ndi that were hanging in Ndengue's house. Ndengue was charged with "aggression" and detained until December 12, when he was released on bail.

On April 20, gendarmes arrested Francois Fofie, legal advisor to the Littoral Province executive committee of the SDF opposition party, at his hotel in Yaounde during a national convention of the SDF, for allegedly possessing an illegal weapon, even though Fofie reportedly has legal authorization to carry a weapon. Gendarmes reportedly asserted that a company that Fofie manages is supplying the SDF with weapons to wage an armed insurrection. Fofie was detained for about 2 months, then released.

Starting on July 17, on orders of the Douala urban council, security forces arrested 70 homeless and mentally disabled persons who habitually lived in the streets of the city, in order to prevent French President Jacques Chirac from seeing them during his visit to the country the following week. The 70 persons were kept in custody in a special ward of the La Quintinie Public Hospital until released on July 30. Some persons who were mistaken for homeless or mentally disabled persons also were arrested because they appeared to be part of the targeted group. Municipal officials in Yaounde also implemented a similar roundup in connection with the Chirac visit.

On the night of September 14, in Guider, in North Province, Police Commissioner Seke Colomban, arrested Madi Baddai and detained him for 4 days. The Commissioner reportedly became enraged with Madi Baddai after Madi Baddai inadvertently touched him, and the Commissioner beat him both in the night club and while in custody (see Section 1.c.).

In November police in Yaounde arrested and briefly detained several persons, including journalist Norbert Ouendji, at a telephone kiosk, following an argument between the kiosk owner and the wife of the Minister of Territorial Administration. Several of those detained were beaten on the soles of their feet while they were held in a district police station (see Section 1.d.). No charges were filed against any police officers.

Security forces harassed and occasionally detained journalists and beat demonstrators and members of human rights NGO's (see Sections 2.a. and 2.b.).

Four Anglophones, Abel Achah Apong, Crispus Kennebie, John Kudi, and Zaque Njenta, have been in the Yaounde Central Prison since 1995, and a fifth, Etchu Wilson Arrey, since 1997. Each was incarcerated after signing or displaying a petition for a referendum on independence for the Anglophone provinces. At year's end, none of these detainees had been brought before a judge or charged with a crime.

Nana Koulagne, a former member of the National Assembly and UNDP activist, has remained in prison in Garoua since May 1997, when members of the security forces attacked and arrested him and other activists of the then-opposition UNDP while he was campaigning for election in the North Province.

Twelve refugees from Equatorial Guinea remained in official detention at a military base at year's end, although in fact the Government allowed them substantial freedom of movement both on and off the base (see Section 2.d.).

Police and gendarmes often arrest persons on spurious charges on Fridays at mid-day or in the afternoon. While the law provides for a judicial review of an arrest within 24 hours, the courts do not convene sessions on the weekend, so the detainee remains in prison at least until Monday. Police and gendarmes commonly accept bribes to make such "Friday

arrests" from persons who have private grievances against the person arrested. There are no known cases of any policemen or gendarmes being sanctioned or punished for this practice.

Government intimidation extends beyond the police stations and holding cells. In his efforts to combat highwaymen ("coupeurs de route"), Colonel Pom and his special antigang gendarmerie unit (see Section 1.a.) use informants to identify and accuse persons of taking part in highway robbery. Standards of proof for such accusations are nonexistent. Accusations occasionally have been used to pursue private grievances, and informants repeatedly have extorted money from innocent persons by threatening to accuse them of being bandits.

The Government does not use forced exile. However, some human rights monitors or political opponents who considered themselves threatened by the Government have left the country voluntarily and declared themselves to be in political exile.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, the judiciary remains highly subject to political influence and corruption. The court system remains technically part of the executive branch, subordinate to the Ministry of Justice. The Constitution specifies that the President is the guarantor of the legal system's independence. He also appoints judges with the advice of the Supreme Council of the Magistrature. However, during the 1990's, elements of the judiciary began to show some modest signs of growing independence. For example in 1992 the Supreme Court publicly itemized numerous flaws in President Biya's reelection. In 1996 courts voided 18 municipal elections that the Ministry of Territorial Administration had declared won by ruling party candidates and ordered the Ministry to hold them again (see Section 3). Since 1997 the courts repeatedly have used powers given them under the 1996 press law to order the Ministry of Territorial Administration to desist from seizing print runs of newspapers critical of the Government. However, an appeals court overturned a criminal libel conviction of journalists on the grounds that it violated 1990 legislation providing for freedom of the press (see Section 2.a.). However, some politically sensitive cases never are heard.

The court system includes the Supreme Court, a court of appeals in each of the 10 provinces, and courts of first instance in each of the country's 58 divisions.

Military tribunals may exercise jurisdiction over civilians not only when the President declares martial law, but also in cases involving civil unrest or organized armed violence. A law on the organization of the judiciary promulgated in 1998 also transferred to military tribunals jurisdiction over gang crimes, grand banditry, and highway robbery.

The legal system includes both national law and customary law, and many cases can be tried using either. Customary law is based upon the traditions of the ethnic group predominant in the region and is adjudicated by traditional authorities of that group. Accordingly, particular points of customary law differ depending upon the region and the ethnic group where a case is being tried. In some areas, traditional courts reportedly continue to try persons accused of some offenses, such as practicing witchcraft, by subjecting them to an ordeal, such as drinking poison (see Section 2.c.). Customary courts may exercise jurisdiction only with the consent of both parties to a case; either party has the right to have any case heard by a national rather than a customary court, and customary law is supposed to be valid only when it is not "repugnant to natural justice, equity, and good conscience." However, many citizens in rural areas remain unaware of their rights under civil law and have been taught since birth that customary laws form the rules by which they must abide. Consequently, traditional courts remain important in rural areas and serve as an alternative for settling disputes. Their authority varies by region and ethnic group, but they are often the arbiters of property and domestic disputes and may serve a probate function as well. Most traditional courts permit appeal of their decisions to traditional authorities of higher rank.

Corruption and inefficiency in the courts remain serious problems. Justice frequently is delayed or denied before reaching the trial stage (see Section 1.d.). At trial political bias often brings trials to a halt or results in an extremely long process, punctuated by extended court recesses. Powerful political or business interests appear to enjoy virtual immunity from prosecution; some politically sensitive cases are settled with a payoff and thus never are heard. Private journalists, political

opponents, and critics of the Government often are charged or held and sometimes jailed under libel statutes considered by observers as unduly restrictive of press freedom (see Section 2.a.). Prisoners may be detained indefinitely during pretrial proceedings.

The legal structure is strongly influenced by the French legal system, although in the Anglophone provinces certain aspects of the Anglo-Saxon tradition apply. The Constitution provides for a fair public hearing in which the defendant is presumed innocent. Because appointed attorneys receive little compensation, the quality of legal representation for indigent persons is often poor. The Bar Association and some voluntary organizations, such as the Cameroonian Association of Female Jurists, offer free assistance in some cases. Trials are normally public, except in cases with political overtones judged disruptive of social peace.

On March 1, police in Guider, in North Province, arrested and detained Mohamdou Tigele on robbery charges that allegedly were fabricated by Guider Police Commissioner Seke Colomban, who reportedly was his accomplice in a scheme to sell stolen motor bikes in Douala. Police beat him severely on March 15 (see Section 1.c.). Tigele subsequently was tried, convicted, and sentenced to two prison terms of 5 and 8 years.

During the year, the Minister of Culture sued Moise Moubitang for contempt. In 1998 Moubitang, a civil servant at the Ministry of Communications, was assaulted by the bodyguard of the Minister of Culture, arrested, and detained because he did not stop working when the visiting minister entered his work area. In July at the conclusion of a trial in which, according to Moubitang, he was not allowed to call any witnesses to testify on his behalf, a court gave Moubitang a suspended sentence of 3 years' imprisonment and ordered him to pay a fine equivalent to approximately \$80.

The Government holds a number of political prisoners; however, As in previous years, there were no reliable estimates of the number of political prisoners held at the end of the year.

In April 1999, the Government began the trial of the 65 surviving Anglophones who had been detained, some for more than 2 years, on suspicion of participating in armed attacks against government installations in the Northwest Province in March 1997. This judicial process did not follow either international or national legal norms. The defendants were not told the specific charges levied against them until the opening of the trial. The Government transferred jurisdiction from a civil court to a military court on the grounds that the attacks were carried out with rifles, classified as "weapons of war." In addition, the trial location was moved from the Northwest Province where the attacks occurred and where judicial proceedings must be conducted in English, to Yaounde, in the Center Province, where judicial proceedings are conducted in French, even though there was an acceptable court in the Northwest Province. Before and during the trial, the accused were incarcerated in detention centers far from their homes and families. Relatives who attempted to make the journey to Yaounde to visit the detainees were denied prison visits. The presiding judge allowed the written testimony of key government witnesses to stand without giving the defense the opportunity to cross-examine them. Senior government officials did not refrain from making public comments on the merits of the case while it was being adjudicated; for example, on June 17, the Minister of Defense commented before the National Assembly that "these people are nothing but grand bandits," and CRTV radio and television broadcast this remark nationwide. The tribunal admitted into evidence confessions credibly alleged in court to have been exacted under torture (see Section 1.c.). The prosecution generally did not produce eyewitnesses able to link each of the accused to the crimes, while other eyewitnesses offered contradictory testimony. In October the military tribunal convicted 37 of the accused, sentencing 3 to life imprisonment and 34 to terms ranging from 1 to 20 years in prison. The tribunal acquitted the 28 defendants, some of whom had been detained for 30 months, during which at least 8 of the persons originally arrested in this case died in custody, some of them as a result of torture inflicted on many of these detainees (see Section 1.c.). The tribunal declared itself incompetent to rule on two accused illegal Ghanaian immigrants. International human rights NGO's including Amnesty International issued public statements criticizing the trial as unfair.

Titus Edzoa, former Minister of Health and longtime presidential aide, who had declared himself a candidate to oppose incumbent President Biya in the 1997 election, remains incarcerated, together with Michel Atangana, his campaign manager. They were sentenced in 1997 to 15 years' imprisonment on embezzlement and corruption charges, for which Edzoa was

arrested shortly after declaring his presidential candidacy (see Section 3). On April 27, the Yaounde Court of Appeals confirmed their convictions and their 15-year prison terms. At year's end, Edzoa reportedly still was held in confinement at the maximum security gendarmerie headquarters, in cramped quarters with very limited access to visitors.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

The preamble of the Constitution provides for the inviolability of the home, for the protection against search except by virtue of law, and for the privacy of all correspondence; however, these rights are subject to the "higher interests of the State," and there were a number of credible reports that police and gendarmes harassed citizens, conducted searches without warrants, and opened or seized mail. The Government continued to keep some opposition activists and dissidents under surveillance.

The law permits a police officer to enter a private home during daylight hours without a warrant if he is pursuing an inquiry and has reason to suspect that a crime has been committed. The officer must have a warrant to make such a search after dark. However, a police officer may enter a private home at any time in pursuit of a criminal observed committing a crime.

An administrative authority may authorize police to conduct neighborhood sweeps in search of suspected criminals or stolen or illegal goods without individual warrants. Such roundups are conducted frequently. During the year, as in 1998, sweeps involving forced entry into homes occurred in Yaounde, Douala, Ekondo Titi, Maroua, and Kousser. In cases where the police have a search warrant for a house or neighborhood, they have the authority to arrest persons without personal arrest warrant if they believe those persons are accomplices to a crime. Typically, security forces seal off a neighborhood, search homes one after another, arrest persons arbitrarily, and seize suspicious or illegal articles. A February 19 breakout by prisoners in the Douala Central Prison was followed by a broad house-to-house search operation through several Douala neighborhoods. During the search, citizens without identification papers were arrested or required to pay a bribe; many were forced to bribe officers to prevent destructive searches of their homes and seizure of any household item for which they did not possess a receipt.

Central government administrative officials in pro-opposition regions reportedly continued to use units of the armed forces to conduct raids on civilian communities involving massive warrantless search and seizure operations, ostensibly intended to force the population to pay taxes, but characterized by some observers as extralegal punishment for failure to pay taxes. Throughout the 1990's, and most recently in October, government officials publicly have blamed opposition parties for the Government's inability to collect internal revenues effectively in the country's large and economically important pro-opposition regions.

In November hundreds of persons lost their homes in the Kobba-Bonaberi neighborhood of Douala when the Douala municipal government cleared the land, saying that the residents were illegal squatters, although some residents claimed to have permits signed by municipal officials.

Security personnel at airports sometimes prevented persons carrying copies of domestically published private newspapers from traveling abroad (see Section 2.d). During the year the Government discontinued and reversed its 1998 intensification of restrictions on the reception of international and satellite broadcasts (see Section 2.a.).

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of expression and of the press; however, the Government continued to impose limits on these rights. The Penal Code's libel laws specify that defamation, abuse, contempt and dissemination of false news are offenses punishable by prison terms and heavy fines. These statutes sometimes are invoked by the Government to silence criticism of the Government and government officials.

While approximately 60 private newspapers were published, only about 18 were published on a regular basis. Most continued to be highly critical of President Biya, his Government, its corruption, its human rights abuses, and its economic policies. However, private journalists continued to practice greater self-censorship than they did before the Government's 1994-95 crackdown on the private press.

In 1996 the Government repealed the law that had authorized the Government both to censor private publications and extrajudicially to seize publications "dangerous to public order" or suspend newspapers' publication licenses. Previously, the Government often had taken these extrajudicial actions to inflict economic damage on newspapers critical of the Government and had done so especially often during election years.

Since 1997 formal censorship has ceased. In addition seizures of print runs of private newspapers and other interference with private newspaper distribution appear to have become less frequent; the Government did not seize print runs of private newspapers or interfere with private newspaper distribution during the year. The Government also did not suspend or revoke the publication licenses of any newspapers during the year.

However, security forces continued frequently to restrict press freedom by harassing or abusing private print media journalists .

On April 12, gendarmes based at state-owned Yaounde General Hospital arbitrarily detained Marie-Noelle Guichi, a Yaounde correspondent of *Le Messenger*, a Douala-based French-language triweekly newspaper, for 24 hours, after the head of the hospital accused the journalist, who was preparing an investigative report on artificial insemination, of being a spy. The following day gendarmes detained Guichi's colleague, Norbert Ouendji, after he came to the hospital to look for her.

On May 31, security forces in Douala, acting on instructions from the Douala prosecutor, arrested Peter William Mandio, the publisher of the Douala-based *Le Front Independent* newspaper. Police detained Mandio for 24 hours on contempt charges related to an article on the Port Authority that his newspaper published; the article allegedly contained military information for which Mandio did not receive military clearance. The charges later were dropped.

On July 22, gendarmes arrested Christophe Bobiokono, a journalist with *Mutations*, a Yaounde-based biweekly newspaper, without a warrant at the newspaper's Yaounde office, and held him for 24 hours, in connection with an article he had written about corruption allegedly involving the son of the Minister of Finance.

The police commissioner, military officials, and gendarmes in the Ndian Division of the Southwest Province continued to harass Philip Njaru, correspondent for a Yaounde-based English-language triweekly newspaper, *The Herald* (see Section 1.c.), who has written articles about corruption involving government officials in the Northwest Province.

Security forces repeatedly questioned the family of Aime Mathurin Moussy, head of the sporadically-published Douala-based newspaper *La Plume du Jour*, while Moussy was in France in May and June, in connection with Moussy's ongoing public criticism of government restriction of press freedom.

In May Christian Ngah Mbipgo, the Fon (traditional ruler) of Kumbo, a small town in the Northwest Province, acting under traditional law at the request of the mayor of Kumbo, expelled the local correspondent of *The Herald* newspaper, Christian Ngah Mbipgo, who had written reports critical of the mayor.

In May, after producing an audio cassette tape entitled "Popol va-t-en" that poked fun at President Biya, Emmanuel Nyoungwa Kemta received multiple anonymous threatening phone calls and fled Yaounde to an undisclosed location.

In June police acting under the instructions of a central government subprefect broke up a press conference in Douala organized by a human rights NGO, Solidarity for the Promotion of Human Rights (PRODHOP). The authorities subsequently banned the press conference, although PRODHOP had notified the competent administrative authority in advance. The police detained Dr. Samuel Mack-kit, the secretary general of the NGO, for 3 hours.

Since 1996 the Government frequently has prosecuted its critics in the print media under the criminal libel laws. These laws authorized the Government, at its discretion and at the request of the plaintiff, to criminalize a civil libel suit, or to initiate a criminal libel suit in cases of alleged libel against the President and other high government officials. There continued to be allegations that government ministers and other high officials offered to drop criminal libel suits in exchange for cash payments from newspapers or journalists. During the year, the Government arrested, prosecuted, or convicted a number of members of the press on criminal libel charges. However, this practice declined in frequency and severity from previous years, apparently due in part to greater caution on the part of journalists.

On February 18 the Yaounde Court of First Instance convicted opposition SDF party chairman John Fru Ndi and journalists Severin Tchounkeu and Henriette Ekwe of the prominent Douala-based triweekly newspaper, *La Nouvelle Expression*, on criminal libel charges. In late 1998, former SDF official Basile Kandoum filed a libel suit against these three persons in connection with an interview published in *La Nouvelle Expression* in which Fru Ndi reportedly stated that Kandoum had embezzled party funds, and the state counsel initiated a criminal libel prosecution. The court sentenced the defendants to a suspended fine equivalent to about \$80, and ordered them to pay symbolic damages of less than one cent to Kandoum.

On June 8, the Bafia Court of First Instance sentenced Severin Tchounkeu, publisher of *La Nouvelle Expression*, and Souley Onohiolo, a freelance journalist who published an article in that newspaper, to pay a fine equivalent to about \$80 (50,000 CFA Francs) pursuant to a criminal conviction for libel and dissemination of false news. The court also ordered the two journalists to pay damages equivalent to about \$133,000 (83 million CFA Francs). Tchounkeu and Onohiolo reportedly appealed the decision. Some observers indicated that if Tchounkeu loses his appeal, he may have to serve a prison sentence that was suspended in connection with a 1997 criminal libel conviction.

On June 15, the Yaounde Court of First Instance sentenced Anselme Mballa, publisher of *Le Serment*, a sporadically-published, Yaounde-based newspaper, to 6 months in prison, pursuant to a conviction for criminal libel of Denis Oumarou, Secretary of State for Posts and Telecommunications. Mballa's lawyer appealed the ruling. Mballa was detained on June 15 and remained in the military barracks of the Yaounde Central Prison.

However, an appellate court judge provisionally released Michel Michaut Moussala, publisher of *Aurore Plus*, a Douala-based, French-language biweekly, on the grounds that the court of first instance that had convicted him of criminal libel in 1998 had disregarded the applicability of the 1990 Law on Freedom of Mass Communication.

There were no developments in several other outstanding criminal libel cases against private journalists.

No new developments were reported in the following criminal libel cases, which were believed to be in appellate litigation during 1998: The 1996 conviction of Patrice Ndedi Penda, publisher of *Galaxie*; the 1996 conviction of Samuel Eleme and Gaston Ekwalla, publisher and correspondent of *La Démocratie*; the 1996 convictions of Tietcheu Kameni, Paul Nyemb, and Eyoun Ngangue of *Le Messenger*; and the conviction of Vianney Ombey Ndzana, publisher of *Generations*; however, all these newspapers were published during the year, and their licenses were no longer suspended at year's end.

The Government publishes an official newspaper, *The Cameroon Tribune*. This paper only occasionally implies criticism of the Government; its reporters do not report extensively on activities or political parties critical of the Government, overtly criticize the ruling party, or portray government programs in an unfavorable light.

The Government continued to operate almost all domestic broadcast media and to determine the content of radio and television broadcasts, which reach far more citizens than the domestic print media. Because of their relatively high cost, as well as distribution problems, newspapers are not read widely outside the major cities. In 1990 and again in 1995, laws were enacted that provided for the licensing of private radio and television stations, but the Government has not approved implementing regulations, despite repeated public promises to do so. In June the Minister of Communications stated that the implementing decrees were ready and were awaiting presidential approval; however, the President did not approve them by year's end. Since 1997 the Government for the first time has allowed limited exceptions to its monopoly of broadcast media: It has licensed five low-power rural community radio stations with extremely limited range, which are mostly funded by

foreign countries, broadcast education-oriented programs to small audiences, and are not allowed to discuss politics. In addition three private radio stations broadcast in Yaounde without licenses; one, Radio Reine, broadcasts Catholic religious programs. Radio Lumiere, broadcasts music out of a secondary school, Ndi Samba Superier, and also serves as a training center for journalism students. The third station, Radio Soleil, began operating in September. In March the Minister of Communications stated, on a CRTV radio broadcast, that such unlicensed stations operate "at their own risk," although the Government took no action to close them. During the year, the Government discontinued and reversed its 1998 intensification of restrictions on the reception of international cable and satellite television broadcasts (see Section 1.f.). Local authorities abandoned their insistence that private cable and satellite companies cease operations pending implementation of the 1990 law to liberalize the broadcast media.

Like The Cameroon Tribune, the government-controlled radio and television monopoly, CRTV, provided broad reporting of CPDM functions, while giving relatively little attention to the political opposition. CRTV management, which repeatedly has instructed CRTV staff to ensure that government views prevail at all times in CRTV broadcasts, continued during the year to punish CRTV journalists who criticized government policy. In March management suspended Lazare Etoundi and Saint Lazare Amougou, two CRTV journalists, for broadcasting a Congolese artist's interview that sharply criticized the CRTV general manager's policies toward Congolese music. On May 27, the CRTV general manager suspended journalist Guy Roger Eba for failing to read all the congratulatory messages sent to President Biya by other heads of state around the world on the occasion of the country's national day. In June CRTV management suspended two CRTV journalists, Kenneth Asobo Khan and Daniel Anicet Noah, for reading a communique that was not approved by management concerning a meeting of the employees of the Ministry of Communication who wished to discuss difficulties that journalists face in dealing with the Government.

Television and radio programming include a weekly program, Expression Directe, which ostensibly fulfills the Government's legal obligation to provide an opportunity for all political parties represented in the National Assembly to present their views. However, CRTV continued to restrict the opposition SDF party's freedom of expression through that program, routinely censoring and significantly shortening proposed SDF programming. For example, on June 17, and again on August 12 and 13, CRTV management refused to broadcast an SDF expose of corruption charges against President Biya involving a French oil company, and on September 9 and 10, CRTV censors deleted parts of SDF programming about a taxi drivers' strike.

High-tech communications, including the Internet, e-mail, and satellite phones, are not widely available or utilized; however, a few cybercafes provide occasional Internet or e-mail access in some urban areas. There are at least six domestic Internet service providers, one of which has been in operation for 3 years. Some are privately owned. The Government has not attempted to restrict or monitor these forms of communications.

Although there are no legal restrictions on academic freedom, state security informants operate on university campuses. Many professors believe that adherence to opposition political parties can affect adversely their professional opportunities and advancement. Free political discussion at the University of Yaounde is dampened by the presence of armed government security forces. Security forces have subjected Dr. Charley Mejame Ejede, a professor of philosophy at the University of Douala who is also national secretary of the Liberal Democratic Alliance political party, to prolonged harassment, presumably due to his political activism.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly; however, the Government sometimes restricts this right in practice. The Penal Code requires organizers of public meetings, demonstrations, or processions to notify government officials in advance; it does not require prior government approval of public assemblies, and does not authorize the Government to suppress public assemblies that it has not approved in advance. However, for many years government officials routinely have asserted that this provision of the Penal Code implicitly authorizes the Government to grant or deny permission to public assemblies, often have not granted permits to assemblies organized by persons or groups critical of the Government, and repeatedly have used force to suppress public assemblies whose organizers submitted advance notice as required by law but for which government authorities did not issue permits. The UNDP party in the Faro and Deo region of Adamaoua Province complained

that local authorities repeatedly blocked their political activities by denying them permission to meet, even in private residences. The Government continued its pattern throughout the 1990's of allowing opposition political parties greater freedom of assembly during nonelection years than during election years.

However, in February security forces prevented one of two groups of opposition SDF party officials from attending a meeting in Zoetele, a small town of the South Province, by erecting a roadblock. The other group of SDF officials attended the meeting, although government authorities cut off electricity to the meeting hall.

On June 9, gendarmes and police charged university students who were demonstrating on the Yaounde-Soa road and beat many students with rifle butts and batons. The students were demonstrating for measures to make that dangerous stretch of road safer.

On June 11 in Douala, police and gendarmes broke up a march to a state-owned radio station by retired workers protesting alleged nonpayment of benefits by the National Social Insurance Company; members of the security forces reportedly seized and destroyed demonstrators' signs and placards.

In June in Doula security forces acting on orders from government authorities disrupted a public press conference by a human rights NGO (see Sections 2.a and 4).

The law provides for freedom of association, and the Government generally respected this right in practice during the year, although there were some exceptions. The conditions for government recognition of a political party, a prerequisite for many political activities, were not onerous. Over 150 political parties operated legally, together with a large and growing number of civic associations. However, the Government was widely suspected of fomenting splits in the main opposition party, the SDF, as a pretext to withdraw official recognition from the main body of the party led by John Fru Ndi. In 1993, following a split in another opposition party, the Government withdrew official recognition from the main faction and conferred it on a smaller but more accommodating faction.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respects this right in practice.

Relations between the State and religious groups are governed chiefly by the Law on Religious Congregations. Religious groups must be approved and registered with the Ministry of Territorial Administration in order to function legally; there were no reports that the Government refused to register any group. It is illegal for a religious group to operate without official recognition, but the law prescribes no specific penalties for doing so. Although official recognition confers no general tax benefits, it allows religious groups to receive real estate as gifts and legacies for the conduct of their activities. In order to register, a religious denomination must fulfill the legal requirement to qualify as a religious congregation. This definition includes "any group of natural persons or corporate bodies whose vocation is divine worship" or "any group of persons living in community in accordance with a religious doctrine." The denomination then submits a file to the Minister of Territorial Administration. The file must include a request for authorization, a copy of the charter of the group that describes planned activities, and the names and respective functions of the officials of the group. The Minister studies the file and sends it to the presidency with a recommendation for a positive or negative decision. The President generally follows the recommendation of the Minister, and authorization is granted by a presidential decree. The approval process usually takes several years, due primarily to administrative slowness. The only religious groups known to be registered are Christian and Muslim groups and the Baha'i Faith, but other groups may be registered. The Ministry has not disclosed the number of registered denominations, but the number of registered religious groups is estimated to be in the dozens. The Government does not register traditional religious groups, on the grounds that the practice of traditional religions is not public but rather private to members of a particular ethnic or kinship group, or to the residents of a particular locality.

Religious missionaries are present throughout the country and operate without impediment. Several religious denominations also operate diverse private schools. The Catholic Church, the largest religious denomination in the country, also operates the country's only private institution of general post-secondary education, as well as the country's oldest private radio station, one of the country's very few modern private printing presses, and a bimonthly newspaper, which until the 1990's was one of the only private newspapers in the country (see Section 2.a.).

Although post-secondary education continues to be dominated by state institutions, private schools affiliated with religious denominations, including Catholic, Protestant, and Koranic schools, have long been among the country's best schools at the primary and secondary levels. The Ministry of Education is charged by law with ensuring that private schools run by religious groups meet the same standards as state-operated schools in terms of curriculum, building quality, and teacher training. For schools affiliated with religious groups, this oversight function is performed by the Sub-Department of Confessional Education of the Ministry's Department of Private Education.

Disputes within registered religious groups about control of places of worship, schools, real estate, or financial assets are resolved in the first instance by the executive branch rather than by the judiciary. In November 1997, 81 of 87 churches of the Cameroon Baptist Conference (CBC) in the Belo Field District, in Boyo Division of Northwest Province, reportedly withdrew from the CBC and formed a new denomination, the Cameroon National Baptist Convention (CNBC). In March 1998, the Ministry of Territorial Administration reportedly ordered CNBC clergy to cease using CBC facilities and to cease operating CBC schools. According to one media report, a 1997 Ministry of Education decision about the control and supervision of CBC-affiliated schools precipitated the withdrawal of the dissenting congregations.

Government officials criticized and questioned criticisms of the Government by religious institutions and leaders, but there were no reports that Government officials used force to suppress such criticism. During the 1997 presidential election campaign, government representatives verbally attacked the Catholic Church for being overly supportive of the political opposition through its forthright criticism of corruption and mismanagement in government.

The practice of witchcraft is a criminal offense under the national penal code; however, persons are generally prosecuted for this offense only in conjunction with some other offense, such as murder. Witchcraft traditionally has been a common explanation for diseases of which the causes were unknown.

There was a media report that in September traditional authorities in Lobe, in Ndian Division of the Southwest Province, banished from the locality six persons, including one blind man, accused of having killed a woman by practicing witchcraft. According to the report, a traditional court tried the accused by requiring them to drink poison that traditionally is believed to kill only those who lie to the court, convicted the accused when they refused to drink, ordered them to pay in-kind, blood-price damages, and expelled them from the locality when they refused to pay. The accused reportedly filed a protest with the divisional officer of the central Government. However, initial investigations could not confirm this report.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The law does not restrict freedom of movement within the country; however, in practice government security forces routinely impede domestic travel. Police frequently stop travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. Police commonly demand bribes from citizens whom they stop at roadblocks or at other points.

Roadblocks and checkpoints manned by security forces have proliferated in cities and most highways and make road travel both time-consuming and costly, since extortion of small bribes is commonplace at these checkpoints. In past years, violent and sometimes fatal confrontations have occurred repeatedly at such checkpoints when travelers would not or could not pay the bribes demanded by the security forces.

During the year, unlike previous years, there were no reports that the Government used its passport control powers to prevent entry or exit from the country of critics and political opponents. However, security force personnel at airports sometimes prevented persons from traveling abroad if they had with them copies of private domestic newspapers (see Section 1.f.).

Cameroon has long been a safe haven for displaced persons and refugees from nearby countries.

The law contains provisions for granting refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government cooperates with the office of the U.N. High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees. The Government provides first asylum to persons who arrive at the border without documentation but who can show a valid claim to refugee status. The UNHCR estimated that there were about 47,000 refugees in the country for whom Cameroon was a country of first asylum. However, some NGO's claim that the number is as high as 60,000. The majority of these persons are Chadians, whose total number was estimated to be more than 41,000. The remainder were principally from Rwanda, Burundi, and the Democratic Republic of the Congo, with small numbers from Liberia, Sudan, and Ethiopia. The Government accepts for resettlement refugees who are granted refugee status by the UNHCR.

Since 1997 government security forces have detained 12 former senior military officers of Equatorial Guinea who had been granted refugee status by the UNHCR and had lived in the country for 4 years. In 1998 these 12 officers, who were affiliated with an Equato-Guinean opposition party and included Alfonso Mba Nsogo, former head of the Equato-Guinean military, contested the Government's assertion that it had arrested them for their own protection. At year's end, the 12 remained in Cameroon under official detention at a security base near Yaounde. However, they are allowed to leave the base on condition that they inform the base commander.

There were no confirmed reports of the forced return of persons to a country where they feared persecution. Although the Government occasionally returns illegal immigrants, there were no reports of forced repatriation of recognized refugees. However, in July two Chadian political refugees disappeared after being summoned to the Cameroon Security Office (see Section 1.b.). Some illegal immigrants have been subjected to harsh treatment and imprisonment. Communities of Nigerians and Chadians have often been the targets of police and gendarme harassment. During raids, members of the security forces often extort money from those who do not have regular residence permits or those who do not have valid receipts for store merchandise (see Section 5).

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens have the constitutional right to change their government, but dominance of the political process by the President and his party limits the ability of citizens to exercise this right. President Paul Biya has controlled the Government since 1982 and the ruling party since 1984. The 1992 and 1997 presidential elections and the 1997 legislative contests were widely criticized and viewed as fraudulent by international and domestic observers. In these elections, administered by the Ministry of Territorial Administration, members of largely pro-opposition ethnic groups and inhabitants of largely pro-opposition localities effectively were prevented from registering or voting, registration and vote counting procedures were not transparent, a public announcement of results was delayed, and the number of votes cast in some progovernment areas exceeded the adult population.

Elections are held by balloting that officially is described as secret but may permit voters to leave the polling place with evidence of how they voted. At polling places on election day, registered citizens receive a package containing one card for each candidate. Citizens vote by depositing into a sealed ballot box, while alone inside a closed booth, an envelope containing one of these cards. Voters are supposed to be given an opportunity to dispose of the unused ballots privately before leaving the polling place, but polling officials rarely act to ensure that this is done.

Following the flawed 1997 legislative elections, international observers endorsed a series of reform measures, including the creation of a permanent and autonomous electoral commission to replace the present system of elections run by the Ministry of Territorial Administration. The Government's control of the electoral process leads to a variety of abuses including

preelection manipulation of voter registration lists.

President Biya's October 1997 reelection was marred by serious procedural flaws as well as by a boycott by the three major opposition parties. While the boycott made the outcome a foregone conclusion, most observers nonetheless considered the contest to be neither free nor fair. Election irregularities were especially egregious in opposition strongholds, where boycotting opposition activists chose not to be present to monitor the voting count.

The Biya administration has proven particularly intolerant of opposition from within its Beti/Bulu ethnic-regional base in southern Cameroon. Following the unexpectedly strong showing of opposition parties in the region in the 1996 municipal elections, Titus Edzoa, a ruling CPDM member from southern Cameroon, a former Minister of Health, and a longtime presidential aide, declared himself a candidate to oppose incumbent President Biya in the October 1997 election. Edzoa and his campaign manager were arrested shortly after he declared his candidacy and before the election was held. They were sentenced to 15 years' imprisonment on embezzlement and corruption charges and remained incarcerated at year's end (see Section 1.e.). Generations, a Yaounde-based newspaper, which was one of last newspapers to have its publication license suspended, was also one of very few newspapers that was both critical of the Government and run by a Beti, Vianney Ombe Ndzana.

In December 1997, after the Supreme Court announced the official result, declaring President Biya the winner with 92.57 percent of the vote, much of the UNDP, which previously had been in opposition, joined the CPDM in a coalition government. The new ruling coalition also included a faction of the UPC party that had participated in previous CPDM-dominated coalition governments under President Biya.

No significant positive reforms have been undertaken to correct the flaws in the electoral process. In 1998 talks between the ruling CPDM party and the leading opposition party, the SDF, broke down over the issue of creating an independent electoral commission, as recommended by most international observers of the 1992 and 1997 Presidential elections. The SDF demanded such a commission but the CPDM refused to grant this demand. Rather, the CPDM-dominated National Assembly passed a few minor reforms to the 1991 electoral code, including increased discretionary power for the Minister of Territorial Administration to rule on the admissibility of candidacies.

The President's control over the country's administrative apparatus is broad and deep. The President appoints all Ministers, including the Prime Minister, who serve at the President's pleasure. The President also directly appoints the governors of each of the 10 provinces. The governors wield considerable power in the electoral process, interpreting the laws and determining how these should be implemented. The President also has the power to appoint important lower level members of the 58 provincial administrative structures, including the senior divisional officers, the divisional officers, and the district chiefs. The governors and senior divisional officers wield considerable authority within the areas under their jurisdiction, including, significantly, the authority to ban political meetings that they deem likely to threaten public order. They also may detain persons for renewable periods of 15 days to combat banditry and other security threats.

The 1996 amendments to the 1972 Constitution retained a strongly centralized system of power, based on presidential authority. However, the amendments imposed a limit of two 7-year (in place of unlimited 5-year) terms on the President. They provided for the creation of a partially elected (70 percent) and partially appointed (30 percent) senate, along with the creation of a similarly constituted set of provincial assemblies with limited power over local affairs. Although promulgated by the President in January 1996, the senate and regional council amendments have not yet been implemented.

Citizens' right to choose their local governments remained circumscribed. In 1996 the Government held local government elections that were unprecedented in the Francophone region and the first such elections since the 1960's in the Anglophone region. These elections were for mayors or deputy mayors and council members in Douala, Yaounde, provincial capitals, and some division capitals. President Biya first promised such elections in 1992, but postponed them twice. In the meantime, the Government greatly increased the number of municipalities run by presidentially-appointed delegates instead of elected mayors. Delegate-run cities, of which there were only four in 1992, by 1996 included all the provincial capitals and some division capitals in pro-opposition provinces, but not in the southern provinces that had tended to support the CPDM. In 1998

a 60-member Committee on Good Governance, created by the Government, publicly recommended that the Government eliminate the position of delegate in order to allow elected local officials to manage municipal governments more freely. Even in municipalities with elected mayors, local autonomy is limited, since elected local governments must rely on the central Government for most of their revenues and their administrative personnel.

Like the 1992 National Assembly elections, the 1996 municipal elections were less flawed than other elections held since 1990. Foreign observers considered the elections largely free and fair, having detected few instances of malfeasance during or after the voting, although opposition parties credibly alleged systematic preelection government manipulation of the registration lists and arbitrary government disqualification of their candidates, especially in the south. Government election authorities acknowledged that opposition candidates won 104 of the 336 offices at stake. Ninety-six contests in which the Government declared the ruling party candidate the winner were appealed to the Supreme Court, which declared itself unqualified to adjudicate many of these complaints, but nullified the results of 18 elections, which it ordered the Government to hold again. As of year's end, the Government had not complied with any of these Supreme Court orders.

During the year the Biya Government continued to use against its preeminent political opponent the criminal libel prosecution tactic that it developed in recent years against its critics in the private press. In 1998 the Government criminalized a civil libel suit filed against SDF party chairman John Fru Ndi by a disgruntled former SDF official whom Fru Ndi reportedly had accused publicly of embezzling party funds (see Section 2.a.). In February the Government obtained a felony conviction of Fru Ndi in a nonjury trial. The court did not sentence Fru Ndi to prison. Conviction and imprisonment on a felony charge, including a criminal libel charge, renders a citizen legally ineligible to hold public office. Although legal opinion appeared divided about whether a felony conviction without a prison sentence may also render a citizen legally ineligible to hold public office, some observers believed that Fru Ndi's conviction might enable the Government to disqualify him for any public office for which he may seek to run in the future. In April Fru Ndi--who in the country's only seriously contested presidential election in 1992 finished a close second to Biya despite serious flaws in the electoral process that favored the incumbent--was reelected overwhelmingly as the national leader of the country's largest opposition party, the SDF, in a freely contested, transparent, and apparently fair election at a national party convention.

There are no laws that specifically prohibit women or members of minorities from participating in government, in the political process, or in other areas of public life. However, women are underrepresented in government and politics. Women hold 3 of 50 cabinet posts, 10 of 180 seats in the National Assembly, and few of the higher offices of major political parties, including the CPDM.

Many of the key members of the Government are drawn from the President's own Bulu/Beti ethnic group, as are disproportionately large numbers of military officers and CPDM officials. Members of some of the other 200 ethnic groups hold 34 cabinet seats, compared with 16 cabinet positions held by members of the President's ethnic group. Section 4. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights monitoring groups generally have considerable latitude to operate. A large number of independent human rights monitoring groups exist, although the activities of virtually all are limited by a shortage of funds and trained personnel. The Government did not formally prevent human rights monitors from operating. In the past, the Government used its authority to approve or withhold official recognition of NGO's, but there have been no recent cases in which such recognition was withheld. However, Government officials repeatedly impeded the effectiveness of human rights NGO's by limiting access to prisoners, by refusing to share information, and increasingly by threatening and using violence against personnel of human rights NGO's (see Sections 1.c. and 1.d.).

Domestic human rights NGO's include the National League for Human Rights, the Organization for Human Rights and Freedoms, the Association of Women Against Violence, the Cameroonian Association of Female Jurists, the Cameroonian Association for Children's Rights, Conscience Africaine, the Movement for the Defense of Human Rights and Liberties (MDHRL), the Human Rights Defense Group, the National Association of Nontribalists and Nonracists, the Committee of Action for Women's and Children's Rights (CADEF), the Human Rights Clinic and Education Center, the Association of Women against Violence, the Cameroonian Association for Children's Rights,, the Cameroon National Association for Family

Welfare (CAMNAFAW), Tribes Without Frontiers (TSF), the Association for the Promotion of Communal Initiatives, and the League for Rights and Freedoms (LDL). A number of these groups issued press releases or reports detailing specific human rights violations. Many held seminars and workshops on various aspects of human rights.

However, during the year there were regular reports that government officials, including members of the security forces as well as anonymous persons, interfered with the operations of human rights NGO's by threatening and using violence against their personnel. On January 17, in Yaounde a group of unidentified armed men shot at Dr. Hilaire Kambga, the secretary general of the national chapter of Conscience Africaine, and ran his car off the road in a car chase, inflicting injuries that required hospitalization. Kamga indicated that one of his attackers, just before the attack, had stated that "my colonel" wanted to see Kamga, that his car had been followed the previous day and that he recently had received anonymous threatening phone calls in connection with his human rights work (see Section 1.c.). Elements of Colonel Pom's special antigang gendarmerie unit repeatedly threatened Abdoulaye Math, a human rights monitor and chairman of the Maroua-based MDHRL, and Semdi Soulaye, the MDHRL's secretary general, causing them to flee from the Far North Province to Yaounde for a week in early June. In June in Douala police acting on orders from government authorities broke up a press conference by a human rights NGO and detained the NGO's secretary general (see Section 2.a.). As of year's end, the Government had not prosecuted any of the persons who reportedly committed these abuses.

The Government generally cooperated with the U.N. Special Rapporteur for Human Rights on a visit to the Far North Province, but Colonel Pom's special antigang gendarmerie unit denied him access to its holding cells (see Section 1.c.). The Government allowed the ICRC, for the first time in 7 years, to have generally unrestricted access to all prisons and detention places and to hold private discussions with inmates.

The governmental National Commission on Human Rights and Freedoms (NCHRF), although hampered by a shortage of funds, conducted a number of investigations into human rights abuses, visited prisons, and organized several human rights seminars aimed at judicial officials, security personnel, and other government officers. Although the Commission infrequently condemned publicly the Government's human rights abuses, its staff intervened with government officials in specific cases of human rights harassment by security forces, attempted to stop Friday arrests (see Section 1.d.) in at least one Yaounde police station, and attempted to obtain medical attention jailed suspects in specific cases. The NCHRF is prohibited by law from publishing information on specific human rights cases. However, it may and does submit reports on specific alleged abuses to the government authorities directly involved, along with recommendations for improving conditions or punishing violators.

Section 5. Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution does not explicitly forbid discrimination based on race, language, or social status. The Constitution prohibits discrimination based on sex and mandates that "everyone has equal rights and obligations," but the Government does not enforce these constitutional provisions effectively.

Women

Violence against women remains at high levels. Women's rights advocates report that the law does not impose effective penalties against men who commit acts of domestic violence. There are no gender-specific assault laws, despite the fact that women are the predominant victims of domestic violence. Spousal abuse is not a legal ground for divorce. In cases of sexual assault, a victim's family or village often imposes direct, summary punishment on the suspected perpetrator through extralegal means ranging from destruction of property to beating. While there are no reliable statistics on violence against women, the large number of newspaper reports--a fraction of actual incidents--indicates that it is widespread.

Despite constitutional provisions recognizing women's rights, women do not, in fact, enjoy the same rights and privileges as men. The civil law theoretically provides equal status and rights for men and women. However, no legal definition of discrimination exists, and some points of civil law are prejudicial to women. The 1981 Civil Code allows a husband to oppose his wife's right to work in a separate profession if the protest is made in the interest of the household and the family. While the

law gives a woman the freedom to organize her own business, the Commercial Code allows a husband to end his wife's commercial activity by notifying the clerk of the commerce tribunal of his opposition based upon the family's interest. Partly for this reason, some employers require a husband's permission before they hire a woman. Polygyny is permitted by law and tradition, but polyandry is not. In cases of divorce, the husband's wishes determine the custody of children over the age of 6. While a man may be convicted of adultery only if the sexual act takes place in his home, a female may be convicted without respect to venue.

Civil law offers a more equal standard than customary law, which is far more discriminatory against women, since in many regions a woman customarily is regarded as the property of her husband. Because of the importance attached to customs and traditions, laws protecting women often are not respected. Despite the law that fixes a minimum age of 15 years for a bride, many girls are married off by their families by the age of 12. In the customary law of some ethnic groups, husbands not only maintain complete control over family property, but also can divorce their wives in a traditional court without being required to provide either verifiable justification or alimony. The extent to which a woman may inherit from her husband normally is governed by traditional law in the absence of a will, and customs vary from group to group. In many traditional societies, custom grants greater authority and benefits to male than to female heirs. Another problem facing women is forced marriage; in some regions, girls' parent can and do give them away in marriage without their consent. Often, a bride's parents are paid a "bride price" by the husband, who is sometimes many years older than the girl. Since a price has been paid, the girl is considered the property of the husband. When a married man dies, his widow is often unable to collect any inheritance, since she herself is considered part of the man's property. The widow often is forced to marry one of the deceased's brothers. Refusal means that she must repay the bride price in full (she usually has no source of funds) and leave the family property. In the northern provinces, some Lamibe (traditional rulers) reportedly prevent their wives and concubines from ever leaving their palaces. The lack of a national legal code covering the family leaves women defenseless against male-oriented customs.

In practice, although not in law, women also suffer from discrimination in access to education. The gap in school attendance rates between boys and girls is 9 percent nationally and 14 percent in the three northern provinces. This problem, which is especially acute in rural areas, results in higher levels of illiteracy among women than among men. According to a 1995 study by a U.N. agency, the adult literacy rate was 75 percent for men but only 52 percent for women. In addition, fewer girls are found at higher levels of education; according to a 1992 study by the Ministry of Women's Affairs, women made up only 23 percent of postsecondary students.

Children

The Constitution provides for a child's right to education, and schooling is mandatory through the age of 14. Nevertheless, in the wake of public sector expenditure cuts and a currency devaluation in 1993-94, increases in formal and informal school fees relative to disposable income have forced many families to forego sending their children to school. The Government has chosen to make public education bear a disproportionate amount of its fiscal retrenchment since 1993. Government spending on education shrank from 4.3 percent of recorded GDP in 1992-93 to an estimated 1.8 percent of recorded GDP in 1998-99.

In 1998 the Government ordered the closure of about 180 unlicensed private primary and secondary schools, mostly in Douala and other pro-opposition areas, in which enrollment had grown to perhaps 50,000 pupils. During the year the Government closed down dozens more such schools, mainly in Douala. While the government vowed to combat clandestine schools, these institutions have sprung up mainly in response to the deterioration of public schools.

Female genital mutilation (FGM), which has been condemned by international health experts as damaging to both physical and psychological health, is not practiced widely, but it is traditional and continues to be practiced in some areas of Far North and Southwest Provinces. It includes the most severe form of the abuse, infibulation, and usually is practiced on preadolescent girls. The Government has criticized the practice; however, no law prohibiting FGM is known to exist.

The degree of familial child abuse is not known but is one of several targeted problems of children's rights organizations.

People with Disabilities

A 1983 law and subsequent implementing legislation provide certain rights for persons with disabilities. These include access to public institutions, medical treatment, and education. The Government is obliged to bear part of a disabled person's educational expenses, to employ disabled persons where possible, and, as necessary, to provide them with public assistance. However, these rights in fact rarely are respected. There are few facilities for disabled persons and little public assistance of any kind. Lack of facilities and care for the mentally disabled is particularly acute. In recent years, the Government reportedly has reduced the share of its expenditures that benefit disabled persons and has terminated subsidies to NGO's that help disabled persons. On one occasion during the year, the municipal governments of Yaounde and Douala each detained a large number of people who appeared to be mentally disabled or homeless to prevent their being seen by a visiting foreign dignitary (see Section 1.d.). Society tends to treat the disabled as tainted, leaving churches or foreign NGO's responsible for providing assistance. However, there is no widespread societal discrimination against the disabled. The law does not mandate special access provisions to buildings and facilities for the disabled.

Indigenous People

A population of perhaps 50,000 to 100,000 Baka (Pygmies), a term that encompasses several different ethnic groups, primarily reside in the forested areas of the South and East provinces, of which Pygmies were the earliest known inhabitants. While no legal discrimination exists, other groups often treat Pygmies as inferior and sometimes subject them to unfair and exploitative labor practices. There have been credible reports of Pygmies being forced out of their homes by logging companies and security forces. There continued to be reports that Pygmies complain that the forests they inhabit are being logged without fair recompense for the negative consequences suffered by the Pygmies of the region.

Religious Minorities

Approximately 40 percent of the population are at least nominally Christian, about 20 percent are at least nominally Islamic, and about 40 percent practice traditional indigenous religions or no religion. Christians are concentrated chiefly in the southern and western provinces. Muslims are concentrated chiefly in the northern provinces. Traditional indigenous religions are practiced in rural areas throughout the country.

Some religious groups face societal pressures within their regions. In the northern provinces, especially in rural areas, societal discrimination by Muslims against persons who practice traditional indigenous religions is strong and widespread, and some Christians in rural areas of the north complain of discrimination by Muslims.

There were occasional reports of isolated conflict between Christians and practitioners of traditional indigenous religions. In December 1998, members of a local traditional secret society, the Nwerong, accused Emmanuel Ngah, the pastor of the Cameroon Baptist Church in Ndu, a village in Northwest Province, of having killed by witchcraft Emmanuel Siben, an employee of the state-owned electrical power company. The Nwerong reportedly attempted to expel Ngah from the village, along with eight other persons whom the Nwerong also accused of practicing witchcraft. Some of the nine persons reportedly left Ndu for the neighboring village of Ntumbaw, from which they reportedly were expelled by the Nwerong of Ntumbaw.

There was one incident of religiously motivated violence by practitioners of a traditional indigenous religion against persons who did not practice that religion. In April near Buea in Southwest Province, villagers said to be acting on the orders of local traditional rulers beat three Germans working with a nongovernmental environmental organization for taking pictures of Mount Cameroon during an eruption of that volcano. Local traditional rulers reportedly had banned all travel to the mountain pending traditional indigenous religious rites to appease local deities in the hope of controlling the eruption.

National/Racial/Ethnic Minorities

The population is divided into more than 200 ethnic groups, among which there are frequent and credible allegations of discrimination. Members of virtually all ethnic groups commonly provide preferential treatment to fellow members when they are able to do so. Ethnic-regional differences continue to pose obstacles to political and economic liberalization.

Members of President Biya's Bulu ethnic group and of closely related Beti groups of southern Cameroon are represented disproportionately and hold key positions in government, the civil service, state-owned businesses, the security forces, the military, and the ruling CPDM party. The large size and centralized character of the public sector has long been widely perceived to favor these groups. Prospective economic and political liberalization is widely perceived as being likely to harm these groups, and to favor other groups, such as the large Bamileke and Anglophone ethnic-cultural groups of the west, whose members tend to be more active in private commerce and industry and have tended to support the SDF since the legalization of opposition parties. Since 1990 natives of the two Anglophone provinces, the Northwest and Southwest Provinces, have suffered disproportionately from human rights violations committed by the Government and its security forces, have been underrepresented in the public sector, and generally have believed that they have not received their fair share of public sector goods and services. Since the flawed 1992 presidential election, which SDF Chairman John Fru Ndi, a native of the Northwest Province, accused Biya of having stolen from him, many residents of the Anglophone region have sought to achieve greater freedom, greater equality of opportunity, and better government, at least partly by regaining regional autonomy rather than through nationwide political reform, forming several quasipolitical organizations to pursue that goal (see Sections 1.c., 1.d., and 1.e.).

During the year, following an international press report that Anglophone separatists had begun smuggling in arms from Nigeria the Government increased deployments of units of the armed forces in the Anglophone provinces and arrested increasing numbers of Anglophones and SDF members on charges of illegally owning or making arms (see Sections 1.a., 1.c. and 1.d.), although the leadership of the SDF repeatedly reaffirmed publicly the party's longstanding commitment to nonviolent forms of political struggle and to federalist decentralization rather than Anglophone secession. On December 30, a group of armed Anglophones seized the state radio station in Buea, occupied it for 3 hours, and broadcast a message proclaiming the independence of the two Anglophone provinces; no violence or arrests were reported in connection with their occupation of the station. In June the Mayor of Bafoussam, the capital of the West Province officials, reportedly voiced suspicions that ruling CPDM party activists set fires that destroyed a market in Bafoussam on June 10, and SDF national party chairman Fru Ndi reportedly speculated publicly that agents of the central Government might have started market fires in Bafoussam and other towns targeting the commercially active Anglophone and Bamileke communities; however, no evidence materialized to confirm such suspicions. Also during the year, the Vatican's appointment of a Bamileke to serve as the Roman Catholic Church's Archbishop of Yaounde led to criticism and some public demonstrations by members of the Beti ethnic group.

Northern Cameroon suffers from ethnic tensions between the Fulani (or Peuhl), a Muslim group that conquered most of the region 200 years ago, and the "Kirdi," the descendents of diverse groups who then practiced traditional indigenous religions and whom the Fulani conquered or displaced, justifying their conquest on religious grounds. Although some Kirdi subsequently have adopted Islam, the Kirdi remain socially, educationally, and economically disadvantaged relative to the Fulani in the three northern provinces. Traditional Fulani rulers (lamibe) continue to wield great power over their subjects, often including Kirdi, sometimes subjecting them to tithing and forced labor. The slavery still practiced in parts of northern Cameroon is reported to be largely enslavement of Kirdi by Fulani. Although the UNDP party is based largely in the Fulani community, the ruling CPDM party has long been widely perceived to represent Fulani as well as Beti-Bulu interests.

During the 1990's, local-language broadcasts by government-controlled regional radio stations in the south Cameroon, as well as private French-language newspapers with close ties to leading government and CPDM figures, repeatedly have incited ethnic animosity against Bamilekes and Anglophones. During the year, anti-Bamileke and anti-Anglophone commentaries continued unabated in the radio broadcasts, but were less conspicuous in the pro-CPDM print media than they were earlier in some prior years.

Members of the country's large community of Nigerian immigrants often complain of illegal discrimination and even persecution by elements of the Government. Crackdowns on undocumented Nigerian immigrants repeatedly have been announced by government officials. For example, in March and April, security forces in Fako Division in the Southwest Province reportedly conducted mass arrests of foreigners without residence permits, most of whom were Nigerians.

On June 22, a land dispute between the Awing and Baligham tribes in the Northwest Province led to mass violence, in which several persons were injured; the dispute subsequently was adjudicated by NOWEFCO, a voluntary association of traditional rulers (see Section 1.c.).

Section 6. Worker Rights

a. The Right of Association

The 1992 Labor Code allows workers to form and join trade unions of their choosing. The Labor Code permits groups of at least 20 workers to organize a union but also requires registration with the Ministry of Labor. However, in practice independent unions have found it extremely difficult to obtain registration. Registered unions are subject to government domination and interference. Some sections of the Labor Code have never taken effect because not all of the implementing decrees have been issued.

There are two trade union confederations. Until 1995 the sole labor confederation was the Confederation of Cameroonian Trade Unions (CCTU), formerly affiliated with the ruling CPDM party under another name (the Organization of Cameroonian Trade Unions.) In 1995 the Government encouraged the creation of a new labor confederation, the Union of Free Trade Unions of Cameroon (USLC), with which it maintains close ties. This move was seen as an effort by the Government to create a rival trade union confederation more firmly under its control. In 1998 the CCTU, government control of which had been eroding since large public sector salary cuts in 1993, split into two rival factions, and the Government banned a conference by the CCTU's reformist faction, led by Benoit Essiga. A CCTU congress held in April, which was attended by international observers and held under the auspices of the International Labor Organization (ILO), elected the reform faction slate of candidates to CCTU leadership positions. However, the Government has been unwilling to recognize the new leadership, and refuses to meet, speak or bargain with the union.

The Labor Code explicitly recognizes workers' right to strike, but only after mandatory arbitration. Arbitration proceedings are not enforceable legally and can be overturned by the Government. The Labor Code provides for the protection of workers engaged in legal strikes and prohibits retribution against them. However, these provisions of the Labor Code do not apply to civil servants, employees of the penitentiary system, or workers responsible for national security. Instead of strikes, civil servants are required to negotiate grievances directly with the minister of the concerned department and with the Minister of Labor.

During the year, actual and threatened labor strikes were much more numerous than in recent prior years. There were strikes by taxi drivers' and railroad workers' unions. The university teachers and high school teachers, who are generally state employees, won concessions from the Government after issuing credible strike threats (see Section 5).

The CCTU is a member of the Organization of African Trade Unions and the International Confederation of Free Trade Unions. The USLC filed applications for membership with these organizations in 1995.

b. The Right to Organize and Bargain Collectively

The Labor Code provides for collective bargaining between workers and management in workplaces, as well as between labor federations and business associations in each sector of the economy. No sectoral collective bargaining negotiations have occurred in recent years. When labor disputes arise, the Government chooses which labor union to invite into the negotiations, selectively excluding some labor representatives. The Labor Code prohibits antiunion discrimination, and

employers guilty of such discrimination are subject to fines of up to an amount equivalent to about \$1,600 (1 million CFA Francs). However, employers found guilty are not required to reinstate the workers against whom they discriminated. The Ministry of Labor has reported no complaints of such discrimination during recent years.

There is an industrial free zone regime, but the Government did not grant approval to any firms to operate under it during the year. Free zone employers are exempt from some provisions of the Labor Code but must respect all internationally recognized worker rights.

c. Prohibition of Forced or Compulsory Labor

The Constitution and the Labor Code prohibit forced or compulsory labor; however, it occurs in practice. Forced or bonded labor by children is not prohibited specifically. The authorities continued to allow prison inmates to be contracted out to private employers or used as communal labor for municipal public works.

There were credible reports that slavery continued to be practiced in parts of northern Cameroon, including in the Lamidat of Rey Bouba, a traditional kingdom in the North Province (see Section 5). In the South and East Provinces, Baka (Pygmies), including children, continued to be subjected to unfair and exploitative labor practices (see Section 5). There were reports of trafficking in girls (see Section 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

A 1969 Ministry of Labor order and the 1992 Labor Code provide the legal framework for the protection of children in the field of labor and education. Article 86 of the Labor Code and the Ministerial Order both set the minimum age for the employment of children at 14. The Ministerial Order also enumerates tasks that cannot be performed legally by children between the ages of 14 and 18. These tasks include moving heavy weights, dangerous and unhealthy tasks, working in confined areas, or tasks that could hurt a child's morality. The order also states that a child's workday cannot exceed 8 hours. In order to allow children between the ages of 14 and 18 to improve their knowledge and education, employers are required to train them. To this end, work contracts must contain a training provision for these minors.

However, Ministry of Labor inspectors responsible for enforcing the law lack resources for an effective inspection program. Moreover, the legal prohibitions do not include family chores, which in many instances are beyond a child's capacity to do. In the north of the country, there are credible reports that children from needy homes are placed with other families to do such work for money. The Constitution does not prohibit specifically forced or bonded labor by children, and there were reports of its practice (see Section 6.c.).

In rural areas, many children begin work at an early age on family farms. Often, rural youth, especially girls, are employed by relatives as domestic helpers, while many urban street vendors are under 14 years of age. There are no special provisions limiting working hours for children. Primary education is compulsory through the age of 14.

e. Acceptable Conditions of Work

Under the Labor Code, the Ministry of Labor is responsible for setting a single minimum wage applicable nationwide in all sectors. The minimum wage is approximately \$40 (23,514 CFA Francs) per month. It does not provide a decent standard of living for an average worker and family.

The Labor Code establishes a standard workweek of 40 hours in public and private nonagricultural firms, and 48 hours in agricultural and related activities. The code makes compulsory at least 24 consecutive hours of weekly rest.

The Government sets health and safety standards, and Ministry of Labor inspectors and occupational health doctors are responsible for monitoring these standards. However, they lack the resources for a comprehensive inspection program. There is no specific legislation permitting workers to remove themselves from dangerous work situations without jeopardy to

continued employment.

Trafficking in Persons

The Penal Code provides that any person who engages in any traffic in persons shall be punished with imprisonment of from 10 to 20 years and that the court may also impose a forfeiture penalty.

According to the NCHRF, there have been reports of farm-to-city trafficking of girls who were promise jobs in cities, but were forced into prostitution or other labor. Early in the year, there was a media report that young girls in Douala were being seized as they left school and subsequently sold. In late March, according to that report, local youths in Douala's Bapenda neighborhood reportedly caught a woman in the act of trying to kidnap a young girl from the Bepanda nursery school. The same report indicated that police rescued the woman from a lynching by fire at the hand of neighborhood residents and detained her in Doula's New Bell Prison, where she assisted investigators who sought to break this trafficking network. Initial efforts to investigate these reports could not corroborate them, but inquiries were continuing at year's end. No NGO's were known to be working to reduce trafficking in persons.

[end of document]

The Office of Website Management, Bureau of Public Affairs, manages this site as a portal for information from the U.S. State Department.

External links to other Internet sites should not be construed as an endorsement of the views or privacy policies contained therein.

Note: documents in Portable Document Format (PDF) require Adobe Acrobat Reader 5.0 or higher to view, [download Adobe Acrobat Reader \(http://get.adobe.com/reader/\)](http://get.adobe.com/reader/).